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Case Name: THE DAVID B. COSTA LIVING TRUST, dated August 17, 2018
Case No.: 23PR194562 (lead case, consolidated with 25PR200738)

Case Name: THE ESTATE OF DAVID COSTA
Case No.: 25PR199269

INTRODUCTION

On April 19, 2023, the Public Guardian filed an ex parte petition for appointment of successor trustee to the David B. Costa Living Trust in docket 23PR194562. The ex parte petition asserted that David Costa (“Decedent”) was conserved and could not serve as the trustee. The court appointed Ryan Marshall Tanaka (“Respondent”) as successor trustee.

On August 12, 2025, after Decedent’s death, Jialing Wang (“Petitioner”), Decedent’s surviving spouse, filed a petition for accounting, to invalidate trust, to remove trustee, and for redress of breach of trust (“Petition”) related to the David B. Costa Living Trust. The Petition was assigned docket 25PR200738. Petitioner alleges that Respondent Tanaka and Philemon Hyunwok Kang (“Kang”), Decedent’s friends, committed elder abuse against both Decedent and Petitioner and unduly influenced Decedent to modify his trust.

On December 3, 2025, dockets 23PR194562 and 25PR200738 were consolidated with docket 23PR194562 designated as the lead case. On January 29, 2026, Petitioner filed an amended Petition in docket 23PR194562 (“Amended Petition”).

On February 19, 2025, in docket 25PR199269, Respondent filed a petition for probate of Decedent’s estate, asserting that Decedent died with a will and seeking appointment as personal administrator. Letters of administration issued on April 14, 2025. On November 20, 2025, Respondent filed a petition for orders (1) confirming trust property, (2) confirming breach of fiduciary duty, and (3) compelling accountings. On January 29, 2026, Petitioner filed an objection to the November 20, 2025 petition (“Objection”).

Currently before the court are Respondent’s demurrer and motion to strike targeting the Amended Petition in docket 23PR194562. Also before the court are Respondent’s demurrer and motion to strike targeting the Objection in docket 25PR199269. Petitioner has opposed all four motions. Respondent filed a reply to the opposition to the demurrer in docket 23PR194562 only. The court continued the hearing on all four motions from April 16, 2026 to May 28, 2026 so that they could be heard together with a demurrer and motion to strike filed by Kang.

Also before the court are a demurrer and motion to strike filed by Kang in docket 23PR194562 targeting the Amended Petition. The demurrer and motion to strike are unopposed.